

DISSENTING OPINION BY MR. MOORE.

I regret that I am obliged to dissent from the judgment of the Court in the present case.

By the present application (*Requête*), filed on May 13th, 1924, the Greek Government, appearing as a plaintiff, has asked the Court in the exercise of compulsory jurisdiction to require the British Government to appear and, as defendant, answer on the merits a claim for damages preferred on behalf of M. Mavrommatis, a Greek subject, in respect of certain concessions which he obtained and of other which he had wished to obtain from the Turkish authorities in Palestine. All these concessions, actual and proposed, relate to public works, services, or "utilities". Two of them, respectively relating to the construction and operation of electric tramways and the supply of electric light and power at Jerusalem, and to the supply of drinking water to the same city, were definitively concluded with the local Turkish authorities on January 27th, 1914. It is alleged that M. Mavrommatis had begun to carry out these concessions by depositing in bank a sum of money and by submitting detailed plans for the approval of the authorities, when, on the outbreak of war he availed himself, with the consent of the authorities, of a provision in the concessions for the postponement of construction in case of *force majeure*. A second group relates to the construction and operation of electric tramways and the supply of electric light and power and of drinking water in the city of Jaffa, and the irrigation of its gardens from the waters of El-Hodja. It is alleged that M. Mavrommatis, under agreements signed on January 27th, 1914, deposited a provisional security and made preliminary surveys; that on January 28th, 1916, concessions were signed by the local authorities, but that, under a new Turkish law, such concessions had to be confirmed by Imperial *firman*; that the documents were sent to Constantinople, and were returned to Jerusalem with a request for the change of a single and immaterial descriptive word, and that the issue of the *firman* involved a mere formality, when, in consequence of the outbreak of war between Greece and Turkey, M. Mavrommatis was obliged to leave the Ottoman dominions and the Imperial *firman* was not promulgated. The third concessionary group related to the irrigation of the valley of the Jordan. Here, again, it is alleged that,

under a verbal agreement in 1911 with the competent authorities, surveys and reports were made, that plans and the draft of a contract were submitted, and that a provisional security was deposited; but it is further stated that, by the Turkish law, the contract required the consent of the Imperial Government after approval by the Parliament, and that this approval was not obtained because the outbreak of the war prevented the Parliament from assembling. In conclusion, the application asks the Court to give judgment that the Government of Palestine and consequently also the British Government has since 1921 "wrongfully refused to recognise to their full extent the rights acquired by M. Mavrommatis under the contracts and agreements concluded by him with the Ottoman authorities in regard to the works specified above", and that the British Government should make reparation for the consequent loss, estimated at £234, 339, together with interest at six per cent from July 20th, 1923, the date on which the estimate was made.

In the Case (*Mémoire*) subsequently filed on behalf of the Greek Government, the claim for damages in respect of the Jordan valley transactions is abandoned, as a proof, so the Case states, that where the claimant feels some doubt as to the international value of his rights, he is not disposed to press them. But the Court is then asked to give judgment against the British Government for the sum of £121,045 in respect of the Jerusalem concessions, and of £113,294 in respect of the Jaffa group, together with interest in each case at the rate of six per cent from July 20th, 1923, up to the date on which the judgment is given. The total of these two sums is the same as the total amount claimed before the Jordan group was withdrawn.

By Article 36, paragraph 1, of the Statute, "the jurisdiction of the Court comprises all cases which the Parties refer to it and all matters specially provided for in treaties and conventions in force"; and, where the compulsory jurisdiction of the Court is invoked, Article 40 requires a "written application" (*Requête*) to be addressed to the Registrar, indicating "the subject of the dispute and the contesting Parties". Article 35, paragraph 2, of the Rules of Court

provides that the application « shall include, in addition to an indication of the subject of the dispute and the names of the parties concerned, a succinct statement of facts », and “an indication of the claim”. The application accordingly specifies as the grounds on which the compulsory jurisdiction of the Court is invoked, (1) Article 9 of Protocol No. XII annexed to the Treaty of Peace of Lausanne of July 24th, 1923”, and (2) “Articles 11 and 26 of the conditions of the Mandate for Palestine conferred upon His Britannic Majesty on July 24th, 1922”. The application then quotes, from Article 9 of the Lausanne Protocol, the provision that, “in territories detached from Turkey under the Treaty”, “the State which acquires the territory is fully subrogated as regards the rights and obligations of Turkey towards the nationals of the other Contracting Powers . . . who are beneficiaries under concessionary contracts entered into before October 29th, 1914, with the Ottoman Government or any local Ottoman authority”, and that “this subrogation will have effect . . . as from October 30th, 1918”. The application further quotes from the first paragraph of Article 11 of the Palestine Mandate, the following clause :

“The Administration of Palestine shall take all necessary measures to safeguard the interests of the community in connection with the development of the country, and, subject to any international obligations accepted by the Mandatory, shall have full power to provide for public ownership or control of any of the natural resources of the country or of the public works, services and utilities established or to be established therein.”

On June 16th, 1924, on the assembling of the Court in ordinary session, the British Government appeared and put in a plea to the jurisdiction, requesting the Court to dismiss the application on the ground among others that the British Government had not consented to the reference of the matter to the Court, that Article 26 of the Palestine Mandate was inapplicable to the case, that the only international instrument by which the British Government's obligations in regard to the recognition of concessions in Palestine were or would be defined was the Concessions Protocol of Lausanne, that this instrument, which formed part of the peace settlement with Turkey, would not become operative until the Lausanne Treaty was duly ratified, and that the Protocol did not provide for the submission to the Court of disputes which might arise as to the interpretation and application of its provisions.

The jurisdictional objection based on the fact that the Concessions Protocol, the provisions of which the application invoked, had not become operative, was obviously well-founded. Not only is the Protocol annexed to the Treaty as part of the peace settlement, but, by the very terms of the Protocol, its coming into force depended upon the ratification of the Treaty. In fixing the periods within which concessions are to be dealt with, within which they may be re-adapted or dissolved, within which options concerning them may be exercised, and within which experts may be employed and arbitral proceedings taken, "the coming into force of the Treaty of Peace" is, all through the Protocol, fixed as the starting point. The treaty was at length ratified (August 6th, 1924); but, in the interval of nearly two months that elapsed after the Court met, the application evidently was, as it stood, subject to dismissal on the ground that the enforcement of unratified treaties, whether by the award of damages for their alleged infraction or otherwise, is beyond the Court's jurisdiction. On this point Article 36 of the Statute, in limiting the compulsory jurisdiction of the Court to matters specially provided for "in treaties and conventions *in force*", is definite and conclusive. The doctrine that governments are bound to ratify whatever their plenipotentiaries, acting within the limits of their instructions, may sign, and that treaties may therefore be regarded as legally operative and enforceable before they have been ratified, is obsolete, and lingers only as an echo from the past.

With respect to the plea to the jurisdiction filed by the defendant Government, it has been suggested in argument before the Court that such pleas are especially common in Anglo-Saxon countries, where it is the usual practice to neglect no means of defence to an action, and that Anglo-Saxon jurists have long been in the habit of carrying this practice into the domain of international justice. But, even if a majority of the five judges who dissent from the assumption of jurisdiction in the present case were not from countries which do not derive either their substantive or their procedural law from Anglo-Saxon jurisprudence, I should be unable to admit that the suggestion is pertinent to the jurisdictional question raised by the plea to the pending application.

There are certain elementary conceptions common to all systems of jurisprudence, and one of these is the principle that a court of

justice is never justified in hearing and adjudging the merits of a cause of which it has not jurisdiction. Nowhere is this more clearly laid down than in the great French repository of jurisprudence by Dalloz, where it is stated that, as jurisdiction is essentially a question of public order, it being a matter of general interest that no authority shall transgress the limits to which its action is confined, an exception to the competence of a tribunal may be taken at any stage of the proceedings, so that, even though the Parties be silent, the tribunal, if it finds that competence is lacking, is bound of its own motion to dismiss the case (*se dessaisir d'office*) ; and a judgment of the highest Court in France is cited to the effect that that court may itself supply the exception, although the Parties had not raised the point before the courts of first instance and of appeal. (Dalloz, *Répertoire, Compétence* — Art. 2, n° 36.)

Article 38, paragraph 4, of the Statute provides that the Court “shall apply”, not as having binding force, but as “subsidiary means for the determination of rules of law”, “judicial decisions and the teachings of the most highly qualified publicists of the various nations”. Having, in the performance of my duty under the Statute, referred to the principles applied by at least some of the Courts of the Continent, I beg leave to say that the decisions of the Courts of United States as to the fundamental character of the question of jurisdiction are practically identical in terms with those of the highest Court in France, and, no doubt, of the highest Courts in at least some other countries. In a leading case the Supreme Court of the United States has declared :

“It is true that the plaintiffs below, against whose objection the error was committed, do not complain of being prejudiced by it ; but the rule, springing from the nature and limits of the judicial power of the United States, is inflexible and without exception, which requires this Court, of its own motion, to deny its own jurisdiction and, in the exercise of its appellate power, that of all other Courts of the United States, in all cases where such jurisdiction does not affirmatively appear in the record on which, in the exercise of that power, it is called to act . . . This question the Court is bound to ask and answer for itself, even when not otherwise suggested and without respect to the relation of the Parties to it.” (Mansfield v. Swan, 1884, III, U.S. 379)

In the United States not only is jurisdiction divided between the State governments and the national government, but the jurisdiction of the federal courts is for the most part statutory and limited. By reason of these fundamental facts, pleas to the jurisdiction are necessarily frequent ; and motions to dismiss a suit for want of jurisdiction are made and entertained not only in respect of the complaint, but whenever in the course of the proceeding it may appear that the essentials of jurisdiction do not exist. Whether the plaintiff would be precluded from bringing another suit would depend upon his ability later to meet the objection to his original complaint. If he could not do this, he would, legally and justly, be precluded from presenting his claim again ; but the dismissal does not in itself necessarily have such an effect. It merely means that the Court will not commit the flagrant illegality of entertaining a suit which, on the plaintiff's own statement, the Court has at the time no legal power to hear and determine.

The requirement of jurisdiction, which is universally recognised in the national sphere, is not less fundamental and peremptory in the international. It will suffice to quote on this elementary point only two publicists.

M. André Weiss, in his work entitled *Droit international privé*, published at Paris in 1913, says :

"The principle of *res judicata* can apply to foreign judgments only so far as they are regular in form and so far as they proceed from judges competent according to the *lex fori*. It is the duty of the tribunal before which they are invoked to examine them from these different points of view, and to decline to give effect to them if the result of the examination is unfavourable." (VI. 10.)¹

M. N. Politis in his volume entitled *La Justice internationale*, published at Paris during the present year, says :

¹ (L'autorité de la chose jugée ne peut appartenir aux sentences étrangères qu'autant qu'elles sont régulières en la forme et qu'autant qu'elles émanent de juges compétents d'après la *lex fori*. Le tribunal devant lequel on les invoque a le devoir de les examiner à ces divers points de vue, et de les arrêter au passage, si le résultat de l'examen est défavorable.)

"One conceives of the possibility of a refusal to execute a sentence, only if it is tainted with nullity. It has this character in the case of a defective agreement, and in that of an excess of power on the part of the arbitrator" (p. 91).¹

Ever mindful of the fact that their judgments, if rendered in excess of power, may be treated as null, international tribunals have universally regarded the question of jurisdiction as fundamental. It would be superfluous to cite from the records of international tribunals particular decisions to this effect. An international tribunal with general jurisdiction, compulsory or non-compulsory, over independent States does not as yet exist. The international judicial tribunals so far created have been tribunals of limited powers. Therefore no presumption in favor of their jurisdiction may be indulged. Their jurisdiction must always affirmatively appear on the face of the record.

This principle is peculiarly applicable to the Permanent Court of International Justice. By Article 36 of the Statute, the limited compulsory jurisdiction, which it was originally proposed to apply to all adhering States, now extends only to States which expressly declare that they accept it; and for this purpose there is attached to the Statute a special protocol, the nature of which is indicated by the title "optional clause" (*disposition facultative*). This "optional clause" has not been signed either by Great Britain or by Greece, so that, for the exercise of compulsory jurisdiction in the present case, grounds must be found elsewhere.

The Greek Government having assigned as grounds for the present compulsory claim Articles 26 and 11 of the Palestine Mandate, I will now consider the terms and effect of these articles.

Article 26 reads as follows :

"The Mandatory agrees that, if any dispute whatever should arise between the Mandatory and another Member of the League of Nations relating to the interpretation or the application of the provisions of the Mandate, such dispute, if it cannot be settled by negotiation, shall be submitted to the Permanent Court of International Justice provided for by Article 14 of the Covenant of the League of Nations."

¹ (On ne conçoit la possibilité d'un refus d'exécution que si la sentence est entachée de nullité. Elle a ce caractère dans l'hypothèse d'un compromis irrégulier et dans celle d'un excès de pouvoir de la part de l'arbitre.)

This clause is found in identical form in all the mandates with one exception. In the Mandate which Great Britain holds for East Africa there is an additional clause, reading as follows : "States Members of the League of Nations may likewise bring any claims on behalf of their nationals for infractions of their rights under this Mandate before the said Court for decision." But, while I mention the existence of this clause, I draw no inference from the fact that a similar clause is not found in the rest of the mandates. My dissent from the judgment on the present case rests upon other grounds.

To the jurisdiction of the Court under Article 26 the concurrence of three conditions is indispensable. These conditions are : First, there must be a "dispute" between the Mandatory and another Member of the League of Nations ; secondly, the dispute must relate to "the interpretation or the application of the provisions of the Mandate" ; thirdly, it must appear that the dispute "cannot be settled by negotiation". Taking as a whole all that is set forth in the present application (*Requête*) and the supporting documents, I am of opinion that none of these conditions is fulfilled. I will discuss the first and third together.

The first condition—the existence of a dispute between the Mandatory and another Member of the League—is not met merely by the filing of a suit by the one government against the other in this Court. There must be a pre-existent difference, certainly in the sense and to the extent that the government which professes to have been aggrieved should have stated its claims and the grounds on which they rest, and that the other government should have had an opportunity to reply, and if it rejects the demands, to give its reasons for so doing. Moreover, if it rejects some of the demands, but admits others, it is entitled to know why the compromise thus offered is not acceptable. These propositions, tested by the ordinary conceptions of fair dealing as between man and man, should seem to be self-evident ; nor would it be difficult to cite cases in which governments have abandoned their claims on considering the arguments adduced on the other side

But it must also appear—and this is the third condition—that the dispute, if any is shown to exist, “cannot be settled by negotiation”. This condition did not originate with the mandates. On the contrary, long before mandates were heard of, a similar clause was inserted in scores of general arbitration treaties, as a vital condition of their acceptance and operation. These treaties for the most part still exist. The condition in question does not mean that the difference must be of such a nature that it is not susceptible of settlement by negotiation ; nor does it mean that resort to the Court is precluded so long as the alleged wrong-doer may profess a willingness to negotiate. The clause must receive a reasonable interpretation ; but an interpretation cannot be reasonable which in effect nullifies the condition.

An international “dispute which cannot be settled by negotiation”, cannot, upon the pending application (*requête*) and supporting proof, be said now to exist, either in law or in fact.

When Article 26 of the Mandate provides for the submission to the Permanent Court of International Justice of disputes which “cannot be settled by negotiation”, it necessarily means disputes between governments. The article, by its very terms, includes only disputes which may arise “between the Mandatory and another Member of the League of Nations”. This obviously does not include a dispute between the Mandatory and M. Mavrommatis. Had M. Mavrommatis been a Member of the League of Nations, it would have been unnecessary for his government to appear here ; but, under Article 26, it is only of disputes between governments that the Court has jurisdiction, and, when the article speaks of the settlement of such disputes by negotiation, it also necessarily means negotiation between governments.

Moreover, in deciding whether such negotiation has taken place, the Court is not at liberty to interpret the word “negotiation” as a process by which governments are enabled to evade their obligations. Although this superficial view may to some extent popularly prevail, yet, in the international sphere and in the sense of international law, negotiation is the legal and orderly administrative process by which governments, in the exercise of their unquestion-

able powers, conduct their relations one with another and discuss, adjust and settle, their differences. Many celebrated judicial decisions might be cited to show the respect paid to this principle by national courts, and it is equally binding on international courts, which exercise their powers only with the consent of nations.

The theory that the Greek Government, at any moment when it might see fit to intervene, might be considered as having been a party to the discussions which M. Mavrommatis and his attorneys carried on directly with the British Colonial Office from 1921 to 1923, cannot be accepted. It is a common thing for aliens to negotiate with a government both concerning contracts or concessions which they desire to obtain and concerning contracts or concessions which the government is alleged to have failed to keep. Often the negotiations are thus directly carried on because it is perfectly understood that the subject matter is not a proper one for diplomatic intervention; and it can never be argued that the government, because it negotiated with the claimant, admitted the right of his government to espouse his cause. On the other hand, in the treatment of the points at issue, and in the making of proposals and counter-proposals, the alien claimant is not hampered by the international obligations which might limit or even preclude the interposition of his government, if he should ask it to make his claim the subject of an international demand.

It is an elementary principle that, when a government officially intervenes on behalf of its citizen, it makes his claim its own, and may settle the claim on such terms as it may conceive to be proper. From this it necessarily results that the government, in taking up the claim, is subject to all the limitations resulting from any obligations which it may have contracted towards the government against which the claim is made; and it cannot pretend to be freed from those limitations by reason of the fact that they were not observed in the negotiations which its citizen previously carried on with the other government. On the other hand, the private citizen, in placing his claim in his government's hands, must be held to have accepted the necessary legal consequences of his action.

These observations are peculiarly applicable to what are called the negotiations in the present case, which embraced all the matters to which reference has been made, including the claims which the applicant's *mémoire* has withdrawn. The exchange of views covered not only existing concessions but also proposals for new ones. In this there is no ground whatever for criticism. In treating directly either with the Colonial Office or with the local authorities in Palestine, M. Mavrommatis was justified in considering his own interests and in making such proposals as he might conceive to be for his advantage. But the situation of his government, especially during and after the negotiations which, in common with the British Government, it carried on with Turkey at Lausanne, was altogether different. For example, the Treaty of Lausanne, like the previous Treaty of Sèvres, protects only concessions granted before October 29th, 1914. The judgment of the Court discusses somewhat extensively, but with much reserve, the possible effects of this stipulation. But, in reality, the only question with which the Court is now concerned is whether the stipulation does not imply that the contracting Parties are not to make diplomatic claims, or bring suits for damages, against one another in respect of concessions granted after that date or not granted at all; and I feel compelled to say that, in my opinion, the stipulation necessarily has that effect.

Prior to the note of the Greek Legation in London to the Foreign Office of May 12th, 1924, announcing the intention of the Greek Government to bring a suit in the Permanent Court of International Justice, I find nothing whatever to indicate the existence of an international dispute. The Court is referred to the letter addressed by the Greek Legation to the Foreign Office in London on January 26th, 1924 but in that letter there is nothing that goes beyond the domain of "good offices". It is an elementary and familiar principle that the use of good offices does not imply the existence of a right to intervene or, in other words, to make an official demand or raise an international dispute; and, taking the character, the scope and the contents of the correspondence, the absence of such an implication in the present case is apparent. In so saying, I do not overlook the suggestion that some of the letters bear file numbers; but the indexing

of papers does not denote the nature of their contents, much less the existence of a dispute. Even the peaceful correspondence of the Court is indexed.

Particular reference is also made to a letter, dated January 27th, 1923, addressed by M. Mélas, secretary of the Greek Legation in London, to Mr. Robartes, a subordinate official of the Foreign Office. In this letter, which is personal in form, M. Mélas stated that M. Mavrommatis, after fruitless negotiations with the Colonial Office, for a fair and equitable arrangement as to his rights in Palestine, was compelled to appeal to the Legation "for advice and support". It is not intimated that the Greek Government had taken up the case or that the Legation had been instructed to intervene in the matter. The entire subject of concessions was in fact then under negotiation with Turkey at Lausanne. Moreover, when, on February 2nd, 1923, Mr. Robartes answered, in the same informal way, M. Mélas's letter of January 27th, he intimated that the attempt to treat the question "through diplomatic channels" would only introduce complications and delays, and that the matter could be more expeditiously dealt with by M. Mavrommatis's solicitor and the Colonial Office "than by complicating the negotiations with the introduction of further intermediaries in the shape of yourself (M. Mélas) and this department" (the Foreign Office). This suggestion evidently was accepted.

We next come to the note of the Greek Legation to the Foreign Office of January 26th, 1924, a year later. This note, after referring to the letter from Mr. Robartes of February 2nd, 1923, states that, from a letter addressed to the Legation "by M. Mavrommatis's solicitors", it appeared that after long negotiations "between him and the Colonial Office", no satisfactory solution had been reached. In these circumstances the writer of the note said that he should be grateful if the Foreign Office could see its way to "letting me know the views of His Majesty's Government on the matter, and whether, in their opinion, M. Mavrommatis's claim could not be satisfactorily met". The note then adds that M. Mavrommatis's solicitors had "suggested" that he would "be prepared to submit—should such a course be agreeable to His Majesty's Government—the examination of the matter to a Court of arbitration; this Court to be composed either of a judge of the

High Court of Justice or by two members nominated one by either of the interested Parties, under an umpire who would be appointed either by a common accord of the two Parties, or by His Majesty's Government alone". Here, again, there is clearly nothing that goes beyond the domain of good offices. No intimation is made that the Greek Government was then to be considered as a Party to the case, much less as a Party to an existing international dispute. It was M. Mavrommatis and the British Government who were represented as being the interested Parties; it was by them that the two arbitrators were to be appointed, and it was by agreement between them, or even by the British Government alone, that the umpire was to be appointed.

To this note the Foreign Office replied on April 1st, 1924, saying that the concessions in question appeared to fall "into three categories governed by different conditions", which might be conveniently referred to as "(a) the Jerusalem, (b) the Jaffa, and (c) the Jordan groups". The reply then states that the Jerusalem concessions, since they alone arose out of an agreement entered into with the Ottoman Government before October 29th, 1914, were the only ones which His Majesty's Government were prepared to recognise, "subject to the production of the original signed copies of the documents and to their being found in order"; but that, as these concessions "were never put into operation", they could not be readapted under Article 4 of the Lausanne Protocol, but fell under Article 6 of that instrument, "to which Greece is a party"; that His Majesty's Government were "unable to agree to their being treated otherwise than in the manner laid down in this article"; and that they did not constitute a question suitable for arbitration except in so far as Article 6 provided for the assessment by experts of an indemnity in respect of a concession dissolved by the concessionary's request. The reply observed, however, that it was not then clear whether M. Mavrommatis desired the Jerusalem concessions "to be dissolved under Article 6 or maintained without readaptation, under the terms of Article 1". The reply then concludes with the statement that, as the Jaffa concessions were signed subsequently to October, 1914, and as, in the case of the Jordan concessions, no concessionary contract was actually completed or signed, the terms of the Lausanne Protocol made it clear that

M. Mavrommatis had no rights under them, and that they were not capable of submission to arbitration.

The only answer of the Greek Legation is to be found in its note of May 12th, 1924, announcing that the Greek Government had decided to submit the case to the Permanent Court of International Justice. It will be observed that, in this note, the Legation for the first time speaks of acting by order of the Greek Government ; but no response whatever is made to the statements and inquiries contained in the communication of the Foreign Office of April 9th, 1924. On the contrary, instead of making a statement, no matter how meagre it may have been, of what the Greek Government conceived to be the respective grounds of M. Mavrommatis's various claims, and particularly of its own right, in view of the terms of the Lausanne Treaty, then to take them up diplomatically and prosecute them, the note merely declares that the Greek Government had "deemed" that the "best means of ascertaining the basis" of his claims was "to have recourse to the high international jurisdiction which has already given us so many proofs of wisdom and impartiality" — meaning the Permanent Court of International Justice. Thus, by the very terms of the note, the jurisdiction of the Court was to be invoked, not in order to obtain the adjudication of a dispute between the two governments which they had been unable to settle by negotiation, but to ascertain without negotiation whether there was any basis for a dispute.

Such being the state of the case upon the petition and proofs presented by the applicant, the claim of jurisdiction appears to proceed upon an interpretation of Article 26 of the Mandate as if it read substantially as follows :

"The Mandatory agrees that, if another Member of the League of Nations should think that there may be grounds on which it might be found to be justified in presenting, on behalf of one of its citizens, a claim against the Mandatory, such Member may forthwith submit the claim to the Permanent Court of International Justice, which shall then proceed to adjudicate the claim and to avoid such damages, if any, as it may find to be due."

The first and third jurisdictional conditions under Article 26 having thus been held to have been satisfied, it yet remains to meet the third condition, namely, that the dispute must relate to "the

interpretation or the application of the provisions of the Mandate"; and for this purpose there is invoked the provision, in the first paragraph of Article II of the Mandate, that the Administration shall take all necessary measures to safeguard the interests of the community in connection with the development of the country, "and, subject to any international obligations accepted by the Mandatory, shall have full power to provide for public ownership or control of any . . . of the public works, services and utilities established or to be established therein". But, in applying this clause to the present case, the Court gives not only to the clause itself but to the word "jurisdiction" an interpretation from which, with much regret, I am compelled to dissent.

I will not enlarge upon the question whether the phrase "subject to any international obligations accepted by the Mandatory" may include all the obligations to which the British Government may be subject either under international law or under international agreements; but I am clearly of the opinion that the clause has no such sweeping effect. Who are the Mandatory Powers? As described in Article 22 of the Covenant they are "advanced nations", which, by reason of that character, are peculiarly fitted to undertake the "tutelage" of peoples "not yet able to stand by themselves". They are indeed the constituents of the community of nations in which the recognition by its members of the obligations of international law is necessarily and tacitly assumed. It is therefore not to be supposed that the Mandate was intended to announce in 1923 that the Mandatories had "accepted" the obligations of international law. In my opinion the word "accepted" applies only to obligations specially assumed and, in determining what international obligations are included, we must, in conformity with an elementary rule of interpretation, examine the context.

By Article II the power the exercise of which is to be "subject to any international obligations accepted by the Mandatory" is the "full power to provide for public ownership or control" of public works, services and utilities. The plaintiff government nowhere alleges an attempt on the part of the Mandatory to exercise that power, unless such an allegation is to be inferred from references to a concession granted to a Mr. Rutenberg, which is said to infringe some of the rights claimed by M. Mavrommatis. But the judg-

ment of the Court, as I understand it, directly holds that the granting of the concession to M. Rutenberg was an exercise of the power to provide for "public ownership or control" of public utilities. In this interpretation I am wholly unable to concur. The precise method of providing for the private control of public utilities as distinguished from public control is the granting of concessions to individuals or companies. The declaration in paragraph 28 of the Rutenberg concession that the company which was to be organized should be recognized "as a public utility body under government control", far from making the concession itself an act of public control, was merely a reservation of the right of public control, whenever the government should see fit to exercise that right. The recognition of the distinction between public control and private control, as here stated, is by no means confined to English-speaking countries. The contest between the two systems may be said to run through the world.

The precise meaning of the phrase "public ownership or control" in Article 11 is indeed clearly shown by the second paragraph of the article, which authorizes the Administration to arrange with the Jewish agency, mentioned in Article 4 of the Mandate, to construct and operate public works, services and utilities, "in so far as these matters are not directly undertaken by the Administration". This is undoubtedly what the words mean in the English text; and, expressing my individual impression, derived from a studious comparison of the two texts, I strongly incline to believe that the French text, in the present instance, is a so-called "literal" translation of the English text, and was intended to mean the same thing. A "literal" translation, however, is often only a verbal imitation, which, if taken alone, may be so interpreted as to pervert or even destroy the meaning of the other text. But I take the two texts as they stand, discarding neither in favour of the other; and, without discussing the question whether a mandate, which is in a sense a legislative act of the Council, is on the same legal footing as a treaty, I accept for the present case the rules laid down by authorities on international law for the interpretation of treaties.

Bonfils, in discussing the interpretation of treaties, lays down the

rule that each clause should be interpreted in the sense which best reconciles the rights and duties of the contracting Parties (*d'interpréter chaque clause dans le sens qui concilie le mieux les droits et les devoirs antérieurs des deux contractants*). (Bonfils, *Manuel de Droit int. public*, 7th edition, by Fauchille, Paris, 1914, p. 571). Rivier likewise declares that it is necessary before all to ascertain the common intention of the Parties — “*id quod actum est*”. (*Il faut avant tout constater la commune intention des Parties*, etc.) (Rivier, *Principes du Droit des Gens*, Paris, 1896, vol. 2, p. 122). But Rivier also points out another rule, to the effect that, if there is a difference as to the sense which usage gives to the text, preference is given to that of the country which is bound. (*S'il y a désaccord quant à l'usage, on s'en tiendra plutôt à celui du pays qui s'oblige*.) As an example of the application of this rule, Rivier cites the case of Article 14 of the Austro-Italian Treaty of peace of October 3rd, 1866, which mentioned the inhabitants (*habitants*) of the ceded territory. This word had a different official technical sense in Austria and in Italy. In Austria an inhabitant (*habitant*) meant a person having a legal domicile ; in Italy, a simple resident. As Austria was ceding a territory which belonged to her when the treaty was made, the word was taken in the Austrian sense (*Id.*, pp. 123—125). This example is directly applicable to the situation of Great Britain in Palestine.

Among those who concur in the judgment of the Court, an impression seems to prevail that the rules here laid down have been observed ; but I am unable to share that impression. On the contrary, in the emergency, there has suddenly been discovered in the English text an unnatural and previously unheard of elasticity, which had made it unnecessary to try the suggested possibilities of the French text.

I will deal very briefly with the passage quoted in the judgment of the Court from the preliminary Counter-case filed by the Agent of the British Government and the passage quoted from his oral argument ; and I will not discuss the latter passage separately, as it adds nothing substantial to the former. In the passage quoted from the preliminary Counter-case it is stated that the Mandatory, when providing for public ownership or control, is subject to any international obligations which he has accepted. This in effect merely repeats the language of Article 11, as to the existence of which there can be no dispute. But, as an explanation of what he

means, the Agent of the British Government states that the League of Nations is pledged "to the maintenance of various beneficent principles, such as freedom of transit and communication, equality of commercial opportunity for all Members of the League, suppression of the arms traffic, and so forth", and that "this is the type of international obligation which the Mandatory has accepted and to which any concessions granted under Article 11 of the Mandate must conform". The judgment of the Court then textually quotes from the preliminary Counter-case a passage immediately following, in which the Agent observed that the Rutenberg concessions "were obliged to conform to this Article 11", and that it would have been open to any Member of the League to question any provisions which infringed the international obligations which the Mandatory had accepted. Here the quotation ends. But immediately after the quoted passage, the Agent goes on to declare that "there is nothing in this article which affects the Mavrommatis case"; and he further states that the questions raised by the application relate only to the extent to which the concessions granted to M. Mavrommatis are valid and binding on the Mandatory, and that this does not fall within the Mandate. This contention is consistent with the position taken in the plea to the jurisdiction, that the subject of "the recognition of concessions in Palestine" is exclusively governed by the Lausanne Protocol and that, as this instrument does not provide for the submission to the Court of disputes relating to its interpretation and application, the Court cannot take cognizance of such disputes.

It is admitted that the phrase "subject to any international obligations accepted by the Mandatory", no matter what its ultimate potentialities may be, actually refers to the Concessions Protocol of Lausanne, which the applicant has in fact invoked. The original draft of the Mandate mentioned the concessions stipulations of the Treaty of Sèvres and nothing else; but, after the Treaty of Sèvres was abandoned, the phrase was put in the form in which it now stands. Although, by reason of certain political incidents, the Mandate did not actually come into force until September 29th, 1923, its terms were definitively settled and approved by the Council on July 24th, 1922 (Official Journal, 1922, p. 825); and, as the Lausanne Treaty was signed on July 24th, 1923, a year later, the Mandate naturally did not mention it. Both at Sèvres and at Lausanne,

the subject of concessions was, from first to last, specially and separately dealt with. The Powers, including Great Britain and Greece, in their negotiations with Turkey, adopted this plan. Concessions often involve considerations of public and political interest. Articles 73 and 77 of the Lausanne Treaty, dealing generally with contracts between governments and individuals and with contracts between individuals, expressly declare that their provisions do not apply to concessions.

The Parties to the Lausanne Protocol No. XII, dealing specially with the subject of concessions, are the British Empire, France, Italy, Greece and Turkey. The Protocol is divided into two sections. The first section, embracing Articles 1 to 8, relates to concessions in territory remaining to Turkey; the second, embracing Articles 9 to 13, related to concessions in territory detached from Turkey. The provisions of the first section are, however, with certain exceptions, made applicable by Article 10 to concessions in detached territory. Among the articles thus made applicable to detached territory are Articles 4, 5 and 6, which contain provisions relating to the readaptation of concessions to "the new economic conditions", the settlement of accounts, and the dissolution, on the request of the concessionnaire, of concessions for which the right of readaptation cannot be claimed. Periods ranging from six months to a year are allowed for such transactions; and, if the Parties cannot agree upon the terms of readaptation, or upon the indemnity, if any, to be paid in case of dissolution, or upon the settlement of accounts, provision is made for the appointment of two experts and, if they should disagree, for the selection of a third to decide. The Protocol, having at length come into force, now constitutes a legal obligation between the Parties to the present suit; and, if its terms are less favourable to individuals holding or claiming concessions than might have been desired, this Court has no power to correct its defects.

There can be no doubt that the Protocol was understood by the contracting Parties to cover the entire subject of concessions. This is shown by its elaboration of principles and the provision of machinery for their application. If anything is lacking, only the voluntary action of the contracting Parties can now supply it. The judgment of the Court admits as much, when it states that the Court

has no compulsory power to interpret and apply the Protocol as such, since the Protocol itself confers no such power. The judgment however, further states that the Court is competent to apply the Protocol in the measure which Article 11 of the Mandate requires. This is indeed self-evident ; but, when we search for particulars, we are brought back to the laboured conjecture that the granting of the Rutenberg concession was or may have been an exercise of the power "to provide for public ownership or control", and to the supposition that the question whether the Jerusalem concessions are entitled to readaptation under the Protocol falls under Article 11. The former I have already discussed. The latter is, in my opinion, solely a question under the Protocol as such, and therefore not within the compulsory power of the Court. Article 11 could apply to concessions covered by the Lausanne Protocol only in the case the Mandatory should, in the exercise of the power to provide for public ownership or control, disregard an existing concession which the Protocol protects.

But, no matter what the jurisdictional possibilities in respect of the Protocol might be, I think that, as between the contracting Parties, governments ruling over territories detached from Turkey are clearly entitled, now that the Protocol has come into force, to full opportunity to consider, discuss and apply its provisions as a whole, and that its regular and orderly application should not be frustrated or interrupted by a suit based on a previous expression of opinion on a single point, concerning which there have been no negotiations between the governments. This objection to the pending application has not passed unperceived ; but, in the judgment of the Court, it is met with a conception of jurisdiction which has, I believe, materially contributed to the difference of opinion which has taken place. The judgment states that, while the "special jurisdiction" which the Protocol creates, for the assessment of indemnities and other matters, excludes as regards those matters the "general jurisdiction given to the Court in disputes concerning the interpretation and application of the Mandate" ; yet, "on the other hand, the provisions regarding administrative negotiations and time limits in no way exclude the jurisdiction of the Court" ; since "their effect is merely to suspend

the exercise of this jurisdiction until negotiations have proved fruitless and the times have expired". But, under this theory of suspended jurisdiction, what becomes of the provision, in Article 26 of the Mandate, by which the jurisdiction of the Court is in every event limited to "disputes" which "cannot be settled by negotiation"? How can this jurisdictional condition be said to be fulfilled, when periods of time, yet to run, are fixed for "administrative negotiations"? Who can say how such negotiations would result? On what principle can it be assumed that they will result in a disagreement? It is evident that, if the Court may assert jurisdiction of a conjectural future dispute in an abstract sense, and hold jurisdiction of the matter pending the happening of an event which will show whether a dispute, in an actual, concrete sense, will ever exist, the Court might become a mere makeweight in negotiations. Nor is this the only reason for rejecting the theory of suspended jurisdiction. It is a well-settled principle of public law that it is inadmissible for courts to assert jurisdiction where, even though there should exist some present ground for complaint, it appears that, for the time being, the power to deal with the subject matter rests with governments, in the exercise of their political and administrative functions. Not only is this principle recognized in the Statute and in the Mandate, but many judicial decisions, national and international, of the highest authority might readily be cited to show the respect which has been paid to it as a principle essential to the regular legal administration of public authority and the maintenance of the public order.

The plea presented by the defendant Government in the present case is what is commonly and technically known as a "plea to the jurisdiction". The word "jurisdiction" signifies "the authority by which judicial officers take cognizance of and decide cases". "the power to hear and determine a cause". (Bouvier, Law Dictionary, "Jurisdiction".) This definition implies that a court cannot assert jurisdiction of a case which it has not at the same time the power to hear and decide. The plea to the "jurisdiction" was in effect a motion to dismiss the application because the allegations which the applicant had made showed that the court could not lawfully proceed to try the merits of the claim and render judgment

upon it. The plea did not raise any question as to the truth of the allegations ; for the purposes of the case, the plea admitted them to be true. Nor did the plea mean that the Court lacked the power to consider the allegations. On the contrary, it meant that the Court not only had the power to consider them, but was legally bound to do so ; and that, taking them as a whole, and accepting them just as they stood, the Court could not legally proceed to hear and determine the merits of the cause, and therefore could not legally assert jurisdiction of it for that purpose.

In disposing of this plea, I think that the Court would, on the facts before it, have adopted an obviously appropriate and legal course, if it had dismissed the present application.

The Hague, August 30th, 1924.

(Signed) JOHN BASSETT MOORE.
